

EU seeks to turn procurement into €600B industrial policy tool

送信者: POLITICO Pro Alert 受信日時: 2026-09-09 21:43

[【メール原文】](#)

BRUSSELS — The EU wants to transform public procurement into a fully fledged tool of industrial policy by putting quality, and not price alone, at the

Pro is better in the app.

[Click here to download.](#)

EU seeks to turn procurement into €600B industrial policy tool

By Aude van den Hove, Pieter Haeck · Sep 9, 2026, 2:42 PM · [View in your browser](#)

BRUSSELS — The EU wants to transform public procurement into a fully fledged tool of industrial policy by putting quality, and not price alone, at the center of tender procedures.

Public procurement represents up to 15 percent of the EU's GDP — or around €2.5 trillion a year. But the bloc's tender rules only apply when the value of a contract reaches certain financial thresholds. The proposed Public Procurement Act — unveiled by the European Commission on Wednesday — sets out the framework for those tenders.

"This is public money, which must also serve our collective goals," Executive Vice President Stéphane Séjourné told reporters before the announcement, adding that the EU's rules on public procurement govern more than €600 billion in spending.

"It's the equivalent of a yearly recovery plan and about four to five times the EU budget in terms of spending," the French commissioner added.

To harness public procurement to its strategic goal of strengthening European industry, the EU executive is betting on quality as the main driver in the awarding of public tenders. This would set a minimum quality weighting of 30 percent, rising to 50 percent for labor-intensive contracts. Environmental, social, innovation, security and resilience considerations would all count as quality.

Public authorities could still deviate from the rule if they can justify using price alone on the grounds that quality is guaranteed through technical specifications.

While public authorities can already put green or social criteria at the center of procurement, Commission research found that their use was neither optimal nor consistent across the bloc. Some contracting authorities, for example, fear litigation if they turn down the lowest-price offer.

European preference

The proposal also spells out how public authorities can favor EU goods and services — a power that they enjoy under existing rules but rarely use. Under the new rules, authorities could restrict participation, impose origin requirements, and reject tenders where EU or "covered" content accounts for less than 50 percent of the tender's value.

The Commission's goal is to provide greater clarity regarding how these rules are applied so that authorities can better evaluate European bids and, if necessary, exclude bids from non-covered

countries, Séjourné said.

“In any case, it won’t be the European Commissioner’s fault if public procurement agencies choose Chinese buses over European ones, since everything is spelled out in the text and currently allows for the preference of European buses,” he added.

Goods that are covered by origin rules in other proposals, such as the Industrial Accelerator Act or the Critical Medicines Act would have to comply with both sets of rules.

Stealth omnibus

Séjourné described the procurement bill as “an act of radical simplification” in keeping with Commission President Ursula von der Leyen’s drive to cut EU red tape through a series of so-called omnibus packages. The measure reduces more than 900 pages of rules set out in three directives and 26 sectoral laws into one regulation running to 200 pages.

The Commission chose a regulation instead of a directive — over the objections of a majority of member countries. A regulation reduces the scope for divergent national transposition of EU procurement rules, making implementation in national law simpler and avoiding “gold-plating” by capitals.

The Public Procurement Act would also make it easier for companies to find and participate in tenders across the EU by introducing a network of digital platforms. There are currently 123 platforms across the bloc — either at national or at local level — and the Commission wants to make sure they all communicate with one another.

Different procedures are also simplified and boiled down to two.

The first is a standard, open procedure with offers being assessed before awarding the contract to the winning bid. The second is a “dynamic” procedure where a public authority pools companies that meet its criteria and later invites them to participate in a tender or negotiate for individual procurement opportunities.

Procuring innovation

The Commission is also seeking to address the longstanding EU problem of homegrown research failing to reach the market.

The bloc is a research powerhouse, but innovators and startups often can’t obtain the funding they need in the EU to market their products and scale up within the bloc. They turn to the U.S. for funding instead, or end up in the “valley of death,” which is when a company already has a viable product, but not the funding to market it.

The Commission’s answer is its proposed European Innovation Act, also announced on Wednesday, which aims to turn governments into major buyers of pre-commercial solutions.

“Innovative ideas developed in Europe too often fail to reach the market, scale across borders or generate new growth sectors,” it states.

The Innovation Act has been led by Bulgarian Research Commissioner Ekaterina Zaharieva, and was initially more ambitious. But the scope of the law was narrowed down after two negative opinions from

the Commission's quality watchdog, according to documents seen by POLITICO.

The EU massively lags other regions in governments procuring research or early-stage prototypes, with the proposal claiming that other regions are investing between five and eight times more than the EU in the public procurement of R&D.

One way to correct this is to create an EU-wide framework for pre-commercial procurement. Harmonizing the procedures should also allow for joint procurement by several public buyers across borders.

The Innovation Act will also seek to help companies to market their intellectual property, by establishing a new competence center in the EU's Intellectual Property Office.

Finally, the Commission will also come up with a so-called innovation challenge. The idea is to let public authorities start with a problem rather than a product and pitch a "societal challenge" to the market.

Competition and Industrial Policy Technology Mobility Energy and Climate Sustainability Health Care

Pro Intelligence Connections

2025/0102(COD) Critical Medicines Act

EP decision on amendments to the legislative propo...

2026/0068(COD) Acceleration of industrial capacity...

Referral of the legislative proposal to the EP com...

This email alert has been sent for your exclusive use as a POLITICO Pro subscriber. Forwarding or reproducing the alert without the express, written permission of POLITICO Pro is a violation of the POLITICO Pro license agreement.

This email was sent to shondo@iies.co.jp

[Update settings](#) | [Unsubscribe from this email](#) | [Unsubscribe from all emails](#)

POLITICO SRL · Rue de la Loi 62 · Brussels 1040 · Belgium